

26PR00290 Estate of Jose Luis Guerrero-Real

County: santa-barbara

Division: Decedent's Estate

Department: 4 SM-Cook

Hearing date: 2026-07-27

Motion: Spousal Property Petition

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Tentative Ruling: Estate of Jose Luis Guerrero-Real

Case Number

26PR00290

Case Type

Decedent's Estate

Hearing Date / Time

Mon, 07/27/2026 - 08:30

Nature of Proceedings

Spousal Property Petition

Tentative Ruling

Probate Notes:

Appearances required.

The following is noted for the Court at the hearing:

Zoila Zepeda De Guerrero filed a Spousal Property Petition on June 9, 2026, requesting the Court confirm that real property at 410 Helen Street, Maricopa, CA is now the property of Ms. De Guerrero as the surviving spouse pursuant to Probate Code section 13500. Ms. De Guerrero alleges that she is the surviving spouse of the Decedent, Jose Luis Guerrero-Real, that they were married in 1979, and were married until Decedent died in 2017.

However, in support of that request, the recorded deed to that property was submitted, and that deed shows that the subject property was owned solely by the Decedent. This contradicts Petitioner's allegation that the subject property was purchased with community property funds during the marriage, because the Evidence Code section 662 creates a presumption that the recorded title is correct, unless overcome by clear and convincing evidence:

The owner of the legal title to property is presumed to be the owner of the full beneficial title. This presumption may be rebutted only by clear and convincing proof.

(Evid. Code, §662.)

Therefore, the Court should order a marriage certificate to be submitted in order to prove the marriage did, in fact, occur in 1979. Otherwise, the Court will only be able to confirm that 1/3 of the subject property passed to the surviving spouse, because separate property passes 1/3 to the surviving spouse, and 2/3 to surviving children.

Judges

Judge Jed Beebe

Dept. 4 SM-Cook

312-C East Cook Street P.O. Box 5369

Santa Maria, CA 93456-5369

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